

24CMCV01667 24CMCV01667

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-08-26

Motion: DEFENDANT FCA US, LLC'S MOTION TO COMPEL PLAINTIFF TIANNA M. MOORE'S DISCOVERY RESPONSES TO DEFENDANT'S REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE AND REQUEST FOR SANCTIONS IN THE AMOUNT OF \$608.00 DATE: August 26, 2026 TIME: 8:30 A.M.

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Case Number: 24CMCV01667 Hearing Date: August 26, 2026 Dept: E

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

TIANNA

M. MOORE.

Plaintiff,

vs.

FCA US, LLC; CERRITOS

DODGE CHRYSLER JEEP RAM; and DOES 1 through 10, inclusive,

Defendants.

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CASE NO: 24CMCV01667

[TENTATIVE] ORDER RE: DEFENDANT FCA US,

LLC'S MOTION TO COMPEL PLAINTIFF TIANNA M. MOORE'S DISCOVERY RESPONSES TO

DEFENDANT'S REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE AND REQUEST FOR

SANCTIONS IN THE AMOUNT OF \$608.00

DATE: August 26, 2026

TIME: 8:30 A.M.

DEPT.: E

Moving Party: Defendant

FCA US LLC

Responding Party: None

Notice: Ok

Tentative Ruling: (1)

FCA's Motion to Compel Plaintiff's Discovery Responses to Request for

Production of Documents Set One is GRANTED.

(2)

FCA's Request for Sanctions is GRANTED IN THE REDUCED AMOUNT OF \$368.00.

I.

BACKGROUND

This is a Song-Beverly action. Plaintiff

Tianna M. Moore alleges that, on October 14, 2017, she entered into a warranty

contract with Defendant FCA US, LLC ("FCA") regarding a 2017 Dodge Challenger

(the "Subject Vehicle"). Plaintiff alleges that defects and nonconformities to

the warranty which substantially impaired the use, value and or safety of the

Subject Vehicle manifested themselves within the applicable express warranty

period. Plaintiff further alleges that FCA was unable to repair the Subject Vehicle

after a reasonable number of repair attempts and failed to either promptly

replace the Subject Vehicle or make restitution.

On October 23, 2024, Plaintiff filed this action

against FCA, Cerritos Dodge Chrysler Jeep Ram, and Does 1 through 10, inclusive

(collectively, the “Defendants”), alleging causes of action for: (1) Violation

of Subdivision (d) of Civil Code Section 1793.2; (2) Violation of Subdivision (b)

of Civil Code Section 1793.2; (3) Violation of Subdivision (a)(3) of Civil Code

Section 1793.2; (4) Breach of the Implied Warranty of Merchantability; (5)

Negligent Repair; and (6) Fraudulent Inducement – Concealment.

On

May 18, 2026, FCA filed this Motion to Compel Plaintiff’s Discovery Responses

to FCA’s Request for Production of Documents, Set One and Request for Sanctions

in the Amount of \$608.00.

As of August 24, 2026, Plaintiff has

not filed an Opposition and FCA has not filed a Reply. Pursuant to Code of Civil

Procedure § 1005(b), all papers opposing a noticed motion must be filed with

the court and served on all other parties “at least nine court days ... before

the hearing”;¹ and all reply papers must be filed with the court and served on

all other parties “at least five court days before the hearing.”² (Code Civ.

Proc. § 1005(b).) ³ Accordingly, any opposition or reply papers now filed are

untimely, and the Court exercises its discretion to refuse to consider untimely

papers. (Cal. R. Ct., Rule 3.1300(d); Mackey v. Bd. of Trustees of

California State Univ. (2019) 31 Cal.App.5th 640, 657.)

II.

ANALYSIS

A.

Legal Standard

A party must respond to requests for

production of documents within 30 days after service of the requests. (Code

Civ. Proc. § 2031.260(a).) If the responding party fails to timely respond, the

requesting party may move for an order compelling response to the discovery. (Id., §

2031.300(c).) Where no response is made, the responding party also waives the

right to make any objections, including ones based on privilege or work-product

protection. (Id. at § 2031.300(a).) No meet and confer efforts

are required before filing a motion to compel responses to the discovery. (Id. at §

2031.300; *Sinaiko Healthcare Consulting, Inc. v. Pac. Healthcare*

Consultants (2007) 148 Cal.App.4th 390, 411.)

Although unverified responses to discovery

are tantamount to no response at all, a party is not required to verify a response

containing only objections. (See *Appleton v. Superior Court* (1988) 206

Cal.App.3d 632, 636 (“*Appleton*”)(Unverified response are tantamount to

no response); see also Code Civ. Proc. § 2031.250(a) (A response containing only

objections need not be verified).)

Because a response containing only objections need not be verified, a

party's failure to verify such a response does not result in a waiver of the

objections made or render them untimely. (Food 4 Less Supermarkets, Inc. v.

Superior Court (1995) 40 Cal.App.4th 651, 658.)

B.

Discussion

FCA moves

the Court for an order compelling Plaintiff to provide initial responses,

without objections, to its Requests for Production of Documents, Set One

("RPDs").

1.

RPDs 1-7 and 9

FCA's motion misconstrues the parties' procedural

position as RPDs 1-7 and 9. Upon review

of Plaintiff's responses to RPDs 1-7 and 9, the Court determines that Plaintiff

has indeed provided initial responses; to each Plaintiff asserts only

objections. (See Hughes Decl., Exh.

B.) Because Plaintiff's initial

responses consist of nothing but objections, those responses need not be verified

but need only be signed by counsel. (See Appleton, supra, 206

Cal.App.3d at p. 696; Code Civ. Proc. § 2031.250(a).)

Accordingly, the Court understand FCA's motion as it

pertains to RPDs 1-7 and 9 to be a motion to compel further responses. Each of FCA's RPDs 1-7 and 9 seek basic information

as to the Subject Vehicle and/or Plaintiff's Complaint: (1) the lease agreement

or sales contract (RPD 1); (2) the Subject Vehicle's current registration (RPD

2); (3) document evidencing Plaintiff's damages (RPD 3); (4) a copy of the

Subject Vehicle's title (RPD 4); (5) a current payoff statement for the Subject

Vehicle (RPD 5); (6) a current payoff statement for the Subject Vehicle with a

30 day per diem (RPD 6); (7) payment history for the Subject Vehicle (RPD 7);

and (8) documents evidencing any repairs, maintenance, or other service work

performed on the Subject Vehicle (RPD 9).

Although FCA's RPDs 1-7 and 9 seek the most basic information

about the Subject Vehicle, Plaintiff responds to each with essentially the same

language:

Plaintiff

objects that the request is vague, ambiguous, overbroad, harassing, and lacks reasonable

particularity. Plaintiff objects that 'YOUR'

is uncertain, ambiguous, and confusing and Plaintiff responds on their own behalf. Plaintiff objects that, as written, the

request seeks information neither relevant to the subject matter of this action

nor reasonably calculated to lead to the discovery of admissible evidence. Plaintiff objects further to the extent that request imposes on Plaintiff any requirement or discovery obligation greater than or different from those under the Code of Civil Procedure and other applicable law. Plaintiff objects that the request invades the right of privacy.

Plaintiff objects that the request seeks information that Defendant has in its possession, custody, and/or control or which may be obtained through other means that are more convenient, less costly, and less burdensome. Plaintiff objects to the extent this request seeks information protected by the attorney-client privilege and/or work product doctrine and seeks the premature disclosure of expert witness information in contravention of Code of Civil Procedure § 2031.410 set seq. Plaintiff objects to the extent the request calls for a legal conclusion.

(See Hughes Decl., Exh. B, p. 8:5-17 (Plaintiff's response to RPD 9); Compare, generally, Hughes Decl., Exh. B (Plaintiff's responses to RPDs 1-7.)

Plaintiff's

responses to RPDs 1-7 and 9 reveals that the objections asserted are meritless. There is nothing ambiguous, vague, confusing

or implicating privacy or any other privilege (or expert opinion) in a request for the lease or purchase contract at issue, service and repair documents, vehicle

title documents, or any of the other documents sought via FCA's RPDs 1-7 and

9. Similarly, seeking basic information

regarding the Subject Vehicle and Plaintiff's claimed damages could not be more

relevant to this matter and could not be more reasonably calculated to lead to

the discovery of admissible evidence.

Plaintiff's objections to RPDs 1-7 and 9 appear spurious and intended to

delay.

In accordance with the above, each

of Plaintiff's objections to FCA's RPDs 1-7 and 9 are OVERRULED. Plaintiff will be ordered to provide further

code-compliant responses, without any further objection.

2.

RPDs 8 and 10

FCA's RPD No. 8 seeks "[a]ll DOCUMENTS

relating to the sale, trade-in, or other exchange or dispossession of YOUR

VEHICLE, including but not limited to

any lease agreement or sales contract for another vehicle for which YOUR

VEHICLE was used as a partial down-payment, trade-in credit, otherwise." (Hughes

Decl., Exh. A, p. 3:10-12 (emphasis in original).) FCA's RPD No. 10 seeks "[a]ll

DOCUMENTS relating to any repairs, maintenance or other service work performed

on YOUR VEHICLE." (Id., p. 3:14-15.)

After asserting the same objections addressed

above in the Court's discussion of RPDs 1-7 and 9, Plaintiff responds to both RPD

No. 8 and RPD No. 10 that no responsive documents have ever existed (see Hughes

Decl., Exh. B., p. 7:10-27, p. 8:11-9:11.) For the same reasons as discussed above,

the Court finds each of Plaintiff's objections to RPDs 8 and 10 meritless and

OVERRULES each asserted objection.

Plaintiff's failure to verify her discovery response renders her

substantive response tantamount to no response at all. (See *Appleton*, supra, 206 Cal.App.3d at

p. 696.) Accordingly, the Court will

order Plaintiff to provide responses to RPDs 8 and 10, without further

objection.

C.

Monetary Sanctions

FCA requests

the Court impose monetary sanctions of \$608.00 against Plaintiff and her

attorney of record for violating obligations under the Discovery Act.

The Court is required to impose monetary sanctions against a

party who unsuccessfully opposes a motion to compel initial responses to RPDs,

unless the court finds that the responding party's delay was substantially

justified or caused by other circumstances that make the imposition of monetary

sanctions unjust. (See Code Civ. Proc. § 2031.300(c).) Further, pursuant to Rule of Court 3.1348, the Court has discretion to award sanctions under the Discovery Act in favor of a successful moving party, even if no opposition to the motion was filed. (See Cal. R. Ct., Rule 3.1348(a).)

Hughes attests he spent 0.4 hours

preparing for this Motion to Compel and anticipates spending 0.6 hours

reviewing Plaintiff's opposition and drafting a reply, at a rate of \$400.00 per

hour. (Hughes Decl., ¶ 9.) Hughes further attests that Kayla Marie Sideco, his

Post-Bar Law Clerk ("Sideco"), spent 0.8 hours drafting this motion at a rate

of \$185.00 per hour, and that the filing fee for the motion was \$60.00. (Id.)

The Court finds both Hughes and Sideco's

hourly rates reasonable for an attorney and a Post-Bar Law Clerk in the Greater

Los Angeles Area. However, the Court

finds Hughes' anticipated 0.6 hours unnecessary here as Plaintiff has not filed

an opposition and FCA has not filed a reply. Accordingly, the Court awards sanctions

in the reduced amount of \$368.00.

III.

CONCLUSION

FCA's

Motion to Compel Request for Production of Documents, Set One is GRANTED. Plaintiff

is ordered to serve code-compliant responses, without objection, to FCA no

later than September 10, 2026.

The Court

GRANTS FCA's Request for Monetary Sanctions in the reduced amount of \$368.00,

imposed jointly and severally against Plaintiff and Plaintiff's counsel of

record. Sanctions are ordered to be paid to FCA's counsel no later than September

10, 2026.